

COMMONWEALTH OF PENNSYLVANIA
HOUSE OF REPRESENTATIVES

STATE GOVERNMENT COMMITTEE
PUBLIC HEARING

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PHILADELPHIA, PA

WEDNESDAY, OCTOBER 20, 2021
9:04 A.M.

PRESENTATION ON
CONGRESSIONAL REDISTRICTING
PHILADELPHIA REGION

BEFORE:

HONORABLE SETH M. GROVE, MAJORITY CHAIRMAN
HONORABLE RUSS DIAMOND
HONORABLE DAWN W. KEEFER
HONORABLE ANDREW LEWIS
HONORABLE RYAN E. MACKENZIE
HONORABLE BRETT R. MILLER
HONORABLE ERIC R. NELSON
HONORABLE CLINT OWLETT
HONORABLE FRANCIS X. RYAN
HONORABLE PAUL SCHEMEL
HONORABLE CRAIG T. STAATS
HONORABLE SCOTT CONKLIN, DEMOCRATIC CHAIRMAN
HONORABLE ISABELLA V. FITZGERALD
HONORABLE BENJAMIN V. SANCHEZ
HONORABLE BRIAN SIMS
HONORABLE JARED G. SOLOMON
HONORABLE JOE WEBSTER

ALSO IN ATTENDANCE:

HONORABLE WENDI THOMAS
HONORABLE MARTINA A. WHITE

* * * * *

Debra B. Miller
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SUBMITTED WRITTEN TESTIMONY

* * *

See submitted written testimony and handouts online
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https://www.legis.state.pa.us/cfdocs/Legis/TR/Public/tr_finder_public_action.cfm?tr_doc_typ=T&billBody=&billTyp=&billNbr=&hearing month=&hearing day=&hearing year=&NewCommittee=State+Government&subcommittee=&subject=&bill=&new title=&new salutation=&new first name=&new middle name=&new last name=&new suffix=&hearing loc=

P R O C E E D I N G S

* * *

MAJORITY CHAIRMAN GROVE: Good morning,
everyone.

Today, the House State Government Committee will convene the last of eight regional hearings across Pennsylvania on congressional redistricting. Today we'll be hearing testimony about the Philadelphia region of our Commonwealth. Thank you to the American Heritage Federal Credit Union and Representative White for hosting us this morning.

As a matter of housekeeping before we get started, a reminder that each testifier will be given 10 minutes to present their testimony before the Members of the Committee. We'll be keeping firmly to these limits. We are here to listen. No questions will be asked of testifiers.

Also, testifiers, please keep your comments relevant to the topic at hand. We are here to learn about this region of the State -- its industries, its values, and its unique communities of interest. And due to recent changes to the Sunshine Law, the subject matter of testimony must be confined to the hearing topic only. Testimony outside of the scope of the hearing will not be permitted.

1 We are here to learn from you and to take your
2 input on the congressional districts that will be in effect
3 for the next decade. This is an important task, so if a
4 testifier begins to stray from relevant testimony, I will
5 ask you to refocus on the topic before us. If you cannot,
6 I will move on to the next listed speaker.

7 We also ask that testifiers speak clearly into
8 the microphone and that any attendees here in the room with
9 us today remain quiet and respectful. Today's public input
10 hearing is livestreamed at www.paredistricting.com, and it
11 is also being recorded. Please help us to ensure that
12 those who are watching at home can easily hear all
13 testimony. Additionally, under the Sunshine Law, if the
14 video stream stops, we will recess the hearing until the
15 issue is fixed.

16 For the Members attending virtually, please
17 ensure your microphones are off and recognize that if your
18 video is on, we can see you.

19 I would be remiss if I didn't also mention that
20 in addition to those testifiers who are present today, the
21 Committee has also received testimony from people all
22 across the Commonwealth who have submitted their written
23 comments online. For the Philadelphia region, we received
24 testimony from Fern H. from Philadelphia, PA; Douglas G.
25 from Philadelphia, Pennsylvania; the Delta Sigma Theta

1 Sorority from Philadelphia, PA -- you can cheer; Michael G.
2 from University Park, Pennsylvania; Harrison F. from
3 Philadelphia, PA; Stephanie J. from Philadelphia, PA; and
4 Pamela H. from Philadelphia, Pennsylvania. That written
5 testimony is before each Member of the House State
6 Government Committee for today's hearing and will be posted
7 online shortly after we conclude.

8 And finally, before we begin, to our testifiers,
9 both in-person and whose testimony we hold in our hands,
10 thank you, thank you, thank you for taking an interest in
11 redistricting and for participating in this
12 once-in-a-decade process.

13 I'll turn it over to Chairman Conklin for any
14 opening remarks.

15 MINORITY CHAIRMAN CONKLIN: As always, I would
16 like to thank everyone for coming out. It's great to be in
17 the City of Brotherly Love, and as always, we look forward
18 to hearing each and every testifier.

19 MAJORITY CHAIRMAN GROVE: And I normally allow
20 the host to do a welcome, and I kind of missed you down
21 there, Representative White. So if you want to say
22 good morning, and any welcome?

23 REPRESENTATIVE WHITE: No. Thank you so much,
24 Seth, both Chairmen. Thank you for bringing the Committee
25 here.

1 This is a really important issue, but welcome to
2 Northeast Philadelphia and to the American Heritage Credit
3 Union where you're being hosted here in my district. We're
4 really grateful for the opportunity to help you in this
5 process.

6 Thank you.

7 MAJORITY CHAIRMAN GROVE: Thank you.

8 We'll go to introduction of Members, starting
9 with my right, the Members in the room, and then we will go
10 to the Members participating virtually.

11 REPRESENTATIVE SCHEMEL: I'm Representative
12 Paul Schemel. I represent portions of Franklin County.

13 REPRESENTATIVE THOMAS: Representative
14 Wendi Thomas, the 178th, nearby Bucks County.

15 MAJORITY CHAIRMAN GROVE: Seth Grove, the
16 196th District, York County.

17 MINORITY CHAIRMAN CONKLIN: Scott Conklin, the
18 77th, Centre County.

19 REPRESENTATIVE LEWIS: Good morning.

20 Andrew Lewis, representing the 105th District,
21 Dauphin County.

22 REPRESENTATIVE WHITE: As previously mentioned,
23 I'm Martina White, the 170th District, Northeast
24 Philadelphia.

25 REPRESENTATIVE SANCHEZ: Good morning, everybody.

1 I'm Ben Sanchez, and I represent the
2 153rd District in nearby Montgomery County.

3 MAJORITY CHAIRMAN GROVE: Representative Miller.

4 REPRESENTATIVE MILLER: Brett Miller, the
5 41st District, Lancaster County.

6 MAJORITY CHAIRMAN GROVE: Representative Owlett.

7 REPRESENTATIVE OWLETT: Representative
8 Clint Owlett, the 68th District, all of Tioga and part of
9 Bradford and part of Potter County.

10 Thank you.

11 MAJORITY CHAIRMAN GROVE: Representative Staats.

12 REPRESENTATIVE STAATS: Good morning.

13 Craig Staats, the 145th District in the great
14 county of Bucks.

15 MAJORITY CHAIRMAN GROVE: Representative Keefer.

16 REPRESENTATIVE KEEFER: Good morning.

17 Representative Dawn Keefer from York and
18 Cumberland Counties, the 92nd District.

19 MAJORITY CHAIRMAN GROVE: Representative Nelson.

20 REPRESENTATIVE NELSON: Good morning.

21 Representative Nelson, Westmoreland County.

22 MAJORITY CHAIRMAN GROVE: Representative
23 Fitzgerald.

24 REPRESENTATIVE FITZGERALD: Good morning.

25 Isabella Fitzgerald, representing the

1 203rd Legislative District, Philadelphia -- West Oak Lane,
2 East Oak Lane, and the Lower Northeast.

3 MAJORITY CHAIRMAN GROVE: Representative Ryan.

4 REPRESENTATIVE RYAN: Representative Frank Ryan,
5 representing the 101st District in Lebanon County.

6 MAJORITY CHAIRMAN GROVE: Representative Diamond.

7 REPRESENTATIVE DIAMOND: Good morning.

8 Russ Diamond, representing the 102nd District in
9 Lebanon County.

10 MAJORITY CHAIRMAN GROVE: Representative
11 Mackenzie.

12 REPRESENTATIVE MACKENZIE: Good morning.

13 Representative Ryan Mackenzie from the
14 134th District in portions of Lehigh and Berks Counties.

15 MAJORITY CHAIRMAN GROVE: Representative Sims.

16 REPRESENTATIVE SIMS: Good morning.

17 Representative Brian Sims, representing
18 Philadelphia's 182nd District, although I am in Clearfield
19 County today.

20 MAJORITY CHAIRMAN GROVE: That's a nice fire you
21 got there, Representative Sims, by the way.

22 REPRESENTATIVE SIMS: Thank you, Chair.

23 MAJORITY CHAIRMAN GROVE: Representative Solomon.

24 REPRESENTATIVE SOLOMON: Jared Solomon, the
25 202nd Legislative District in Northeast Philadelphia.

1 Thank you.

2 MAJORITY CHAIRMAN GROVE: Representative Webster.

3 REPRESENTATIVE WEBSTER: Perfect timing,

4 Mr. Chairman. Thank you.

5 I'm Joe Webster. I represent the 150th District
6 in western Montgomery County. Good morning.

7 MAJORITY CHAIRMAN GROVE: And the catchall: Did
8 I miss anybody?

9 All right. Hearing none, we will move on to our
10 testifiers, and again, thank you all for coming out and
11 participating in this hearing this morning.

12 Our first testifier is Will Gonzalez, Executive
13 Director of Ceiba, from Philadelphia, Pennsylvania.

14 Oh, he is not here yet. All right. So if he
15 gets here, we will plug him in the timeline.

16 Next, we have Harold Floyd from Media,
17 Pennsylvania. Harold, thank you so much for coming and
18 participating this morning.

19 And since you're the first testifier, just make
20 sure the little green light on the microphone is lit. It's
21 nice and bright, so just hit that push button.

22 MR. FLOYD: So it is green now. It is green now.

23 MAJORITY CHAIRMAN GROVE: It is not green right
24 now, so hit the---

25 MR. FLOYD: There we go.

1 MAJORITY CHAIRMAN GROVE: There we go. All
2 right.

3 So when you're comfortable and ready, please feel
4 free to begin, and thank you again for your participation.

5 MR. FLOYD: Thank you.

6 Fifty years ago, I entered into the service of
7 our country, first at West Point and then later for 5 years
8 as a field artillery officer. I was willing to put my life
9 on the line if called to do so because I believed in the
10 United States and its ideals.

11 For the last 40 years, I have been a Pennsylvania
12 citizen, and in the last 10, I have become aware of
13 Pennsylvania as a heavily gerrymandered State.
14 Gerrymandering is a perversion of the democratic ideals
15 that I signed up to defend.

16 I lived in the former Pennsylvania
17 7th Congressional District drawn to protect the former
18 Congressman, Pat Meehan, and designed to minimize the vote
19 of certain groups. The whole thing was embarrassing, if
20 you'll remember "Goofy kicking Donald," and certainly
21 undermined my faith in our Commonwealth and nation.

22 While the gerrymandered districts were
23 subsequently redrawn by the State Supreme Court, this time
24 I want the districts drawn much more reasonably to reflect
25 the local communities.

1 I think the best rule to follow is the one from
2 the Pennsylvania Constitution regarding State legislative
3 districts; i.e., "Unless absolutely necessary no county,
4 city, incorporated town, borough, township or ward shall be
5 divided in forming either a senatorial or representative
6 district." In other words, I hope you will do the right
7 thing this time rather than what happened 10 years ago.

8 Thank you. We are counting on you.

9 MAJORITY CHAIRMAN GROVE: Thank you.

10 The next testifier is Arlene Edmonds from
11 Philadelphia, Pennsylvania. Arlene?

12 All right. Moving on to Tamara -- Gureghian?
13 How did I do on your last name? I probably butchered it.

14 MS. GUREGHIAN: No. It's Tamara Gureghian.

15 MAJORITY CHAIRMAN GROVE: Gureghian. All right.

16 MS. GUREGHIAN: And I'm having some health
17 issues, so I'm going to just stand instead of sit.

18 MAJORITY CHAIRMAN GROVE: That's perfectly fine.
19 And when you're comfortable and ready, begin. And just
20 make sure that little green light is on.

21 MS. GUREGHIAN: It is on.

22 MAJORITY CHAIRMAN GROVE: Okay.

23 MS. GUREGHIAN: Can you hear me okay?

24 MAJORITY CHAIRMAN GROVE: The floor is yours.

25 Yep.

1 MS. GUREGHIAN: Okay.

2 My name is Tamara Gureghian. I have lived in
3 Pennsylvania for 52 years, 42 of them in Bucks County. The
4 main things that I would like you to do when drawing
5 congressional district lines are as follows:

6 First, start with a clean slate. We are losing a
7 congressional seat. The best way to draw new lines is to
8 start fresh. Do not worry about incumbents. Drawing
9 district lines is challenging. There are many competing
10 interests. You have school districts, natural boundaries,
11 community interests. Incumbent retention should not be one
12 of them.

13 If an incumbent excels, they will have a list of
14 reasons why they should be elected in whatever district
15 they find themselves in after the map is drawn from
16 scratch. If they find that they no longer comfortably live
17 in a district in which they once served, then they can feel
18 free to move into that district.

19 You heard from Harold Floyd just a few moments
20 ago and he served in our military, and we have often asked
21 our military and service people to move to defend our
22 democracy. I think the politicians should do the same.
23 Politicians should move to serve the people. District
24 lines should not move to serve politicians. So wipe the
25 slate clean and start fresh.

1 Second, establish your values. Drawing district
2 lines requires tough choices. There are many competing
3 ways to draw maps. After wiping the slate clean, you must
4 establish your top priorities before drawing a new map in
5 order to help you make those tough choices. The top values
6 that should be utilized when drawing the new map are as
7 follows:

8 One, prioritize competitiveness. Establish as
9 many competitive districts as possible. We are a purple
10 State. Our districts should reflect that purpleness.
11 Competitive districts will allow us more responsiveness,
12 more give-and-take between the two major political parties,
13 and more voice for Independents and moderates.

14 For those of you concerned about wiping the slate
15 clean and establishing competitive districts, I direct your
16 attention to my State Senate District 6. I know you are
17 drawing congressional lines, but taking a look at my State
18 Senate District will help illustrate my point as to why
19 competitive districts are good for our democracy.

20 In my State Senate District 6, our registered
21 party voter affiliation is split 54 to 45 to 1. Our
22 Senator's party affiliation, it's with the 45 percent. How
23 can that be? Because competitive districts encourage
24 Legislators to serve all the people and all the people to
25 vote. You know your ballot can make a difference between a

1 win and a loss.

2 Every vote counts in a competitive district. You
3 may not always get what you want, but you get some of what
4 you want. You feel represented and you feel you have a
5 chance to influence a decision, and so you vote for a
6 person who will make you feel heard, regardless of party
7 affiliation.

8 Both my State Senate District, Senate District 6,
9 and House District 29 are competitive. Both of my
10 Legislators are responsive to my calls and requests for
11 meetings. Both support fair redistricting practices. Both
12 win because they listen to their constituents. They have a
13 better understanding of the issues facing a greater variety
14 of people and more compassion for their plight. They have
15 an ear on the people to hear which way they are leaning on
16 an issue, and they are able to respond accordingly.

17 My Congressional District 1 is also very
18 competitive, and while I have not had occasion to meet with
19 my Representative, I have called about issues of importance
20 to me, mainly Armenian issues, and I have received the
21 support that does not always follow the party-line agenda
22 of my Representative. Thus, I know firsthand that
23 competitive districts allow the will of the people to
24 influence decisionmaking. When the will of the people
25 changes, we see a shift in decisionmaking. This shift is

1 crucial in a healthy democracy. Competitiveness equals
2 compromise, which equals a healthy democracy.

3 Therefore, I ask that you create a map that
4 prioritizes competitiveness and reflects the true
5 purpleness of our State. Examples of maps with competitive
6 districts can be seen on Dave's Redistricting website under
7 PA "Notable" congressional maps.

8 The second value to keep in the forefront of your
9 minds is respecting minorities. Respect the Voting Rights
10 Act. You will be able to see where minorities live,
11 ensuring minorities have the ability to elect someone that
12 understands and represents their values. This does not
13 mean lump them all in one district. It means give them a
14 fair shot at representation. Do not dilute their power and
15 do not consolidate it. Let their presence have a
16 measurable impact on elections so their voices are
17 respected and heard.

18 You have heard from others regarding the best way
19 to protect minority rights, so I will defer to their
20 expertise. I mention it here only to bolster the support
21 that Pennsylvanians have in supporting minorities and
22 having them have an impact on our elections.

23 The third and fourth values to use as guideposts
24 are creating districts with equal population and making the
25 districts as compact and contiguous as possible.

1 Those are the four main values I would like you
2 to consider when mapping. Sometimes these values will be
3 difficult to balance. Nevertheless, if these values are
4 not manipulated to create partisan gerrymandered maps, the
5 results will be good for Pennsylvania.

6 After wiping the slate clean and establishing
7 your values, the third thing to keep in mind when mapping
8 is be transparent. We understand that no matter what lines
9 you draw, some people will be unhappy. Nonetheless, more
10 people will be content if you establish that your tough
11 decisions were based on ethical values.

12 Public satisfaction is one of the main reasons
13 why my second request, establish your values, is so
14 important. Establishing your values will facilitate your
15 ability to communicate your reasoning to the people.
16 Thoughts that are outlined and revealed to the public will
17 go a long way in restoring our faith in our government.

18 If you split a small community, explain, clarify
19 why a line may not be good for a particular community but
20 is good for the State of Pennsylvania. Let every
21 Pennsylvanian feel like their community was considered. If
22 a tough choice had to be made, so be it, but tell us why,
23 explain, so that we know it's not to keep one person or one
24 party in power at the expense of a community. Restore our
25 faith in government by being transparent with your values

1 and reasoning.

2 Fourth, consider citizen-drawn maps. The
3 citizens of Pennsylvania have been working long and hard
4 trying to find time to provide you with the best guidance
5 possible in preserving our Commonwealth. Citizen-made maps
6 are available on Draw the Lines PA. You can see that the
7 map made by Nicholas Booth prides itself on ensuring that
8 districts are very compact and competitive. He outlines
9 his reasoning for splitting counties. If you want to see
10 how easy it is to be transparent with your values and
11 reasoning, take a look at Booth's map. Corey Cohen does
12 the same with his map, which also considers minority
13 representation. The maps on Draw the Lines PA and their
14 explanations can serve as models on how to be transparent
15 with map drawing.

16 Next, I'll discuss specifics.

17 I'm worried about my county, Bucks County. Bucks
18 County borders Montgomery County. I know the people of
19 Montgomery County have been split up five ways in the past.
20 I don't want the Committee to appease Montgomery County
21 residents at the cost of Bucks County residents. I don't
22 want the splits shifted our way.

23 Bucks County is a very rare district in that it
24 is naturally purple. Thus, it makes sense to keep Bucks
25 County whole. You must carefully decide which communities

1 you will add to Bucks County in order to reach the required
2 population. If you choose to attach a more right- or
3 left-leaning community, you will destroy the
4 competitiveness of the district. This destruction would be
5 bad for Bucks County and bad for the Commonwealth. Look
6 for a moderate, equally purple area to add to Bucks,
7 perhaps Horsham Township or Montgomery Township.

8 As you move forward, I ask for the following:

9 Place the information about your hearings and how
10 to testify on the General Assembly website, not a partisan
11 one. Finding this information through a partisan website
12 sends a message of impropriety to the people. Placing it
13 on the General Assembly will foster a feeling of fairness.

14 Hold a hearing in places and at a time that is
15 convenient to Pennsylvanians, including Zoom meetings to
16 accommodate for our disabled population and pandemic
17 concerns. Include meetings held at night and close to
18 public transportation. Hold hearings jointly with the
19 Senate Committee.

20 Continue to allow public feedback. Present maps
21 to the public and allow and invite public comment and
22 feedback. This task is daunting, and we are here to help
23 and willing to help. We can let you know if a community or
24 geographic boundary or an economic tie was inadvertently
25 overlooked.

1 Allow sufficient time for feedback on maps to be
2 given, specifically at least a week.

3 I will end where I began. Start with a clean
4 slate. If you do, you will send a much-needed message to
5 the Commonwealth that the people of Pennsylvania come
6 first. I strongly believe that a good map will come from
7 starting fresh and disregarding where incumbents live.
8 Many mapmakers have shown this to be possible.

9 Set as your goal competitive districts. Use that
10 as a starting point. Modify it slightly only to satisfy
11 respecting minorities, districts with equal population, and
12 compact and contiguous districts. Be transparent with the
13 process and with your values, and let the people give input
14 on the maps you create before they are finalized.

15 Through a transparent and collaborative process,
16 Pennsylvania will be a model for redistricting. After
17 years of gerrymandering, our map can showcase how
18 redistricting can be done fairly and responsibly. You have
19 the power to produce a map that will be a paradigm for fair
20 districts.

21 When citizens of the United States are reminded
22 over and over again how Pennsylvania, a once gerrymandered
23 State, is now the epitome of excellence in map drawing, a
24 State where the Legislature listens to the people, where
25 things get done, where districts are fair, our population

1 will swell. Then in 10 years, we will redraw the lines,
2 not adjusting for a loss but a gain.

3 Thank you for your service and the opportunity to
4 speak.

5 MAJORITY CHAIRMAN GROVE: Thank you so much for
6 your time and willingness to come out and testify. We
7 greatly appreciate it.

8 MS. GUREGHIAN: Thank you.

9 MAJORITY CHAIRMAN GROVE: Thank you.

10 Our next testifier is Carmina Taylor, the
11 We Can't Wait Statewide Coalition and the Movement for
12 Black and Brown Lives in Montgomery County. She's from
13 Philadelphia, Pennsylvania.

14 Thank you so much for joining us this morning.
15 And the green light is on, so when you are comfortable and
16 ready, the floor is yours.

17 MS. TAYLOR: I just wanted to note that
18 Philadelphia is also the City of Sisterly Affection,
19 Representative Conklin. You have to, like, equalize that.
20 Am I right? All right. Is that noted?

21 MINORITY CHAIRMAN CONKLIN: It is noted, and I
22 have already found that out.

23 MS. TAYLOR: All right. I just wanted to make
24 sure you knew.

25 Good morning. Good morning. My name is

1 Carmina Taylor. I am an activist for the people of
2 Pennsylvania. I am the founder of the statewide advocacy
3 group We Can't Wait PA Statewide Coalition, and I'm the
4 founder of the Movement for Black and Brown Lives in
5 Montgomery County. However, what I'm most proud of is my
6 leadership role in edifying the minds of my Montgomery
7 County Cultural Proficiency and Equity Student Ambassadors.
8 I'm here today for them, to stand up and to speak up for
9 their future.

10 The next redistricting process of our Federal and
11 State legislative maps has to be an exercise of real
12 democracy in action. We need to demonstrate to our young
13 people that we will set aside the wrangling of politics and
14 we will demonstrate that their voices are heard, that all
15 of our voices are heard.

16 Right now, our young people have ascertained that
17 redistricting is about race and suppressing the Black vote.
18 They are aware of the compromise of 1787 where Black slaves
19 were deemed as three-fifths of a White person as a form of
20 representation in the House of Representatives. They
21 understand the historical context and how it has become a
22 foundation for skeptical thinking of whether American
23 democracy really exists.

24 Our young people in Pennsylvania are looking for
25 a cascade of justice around redistricting that involves

1 real transparency of the redistricting process, less
2 conflict between political parties, real accountability in
3 the final decisionmaking process, and fairness for both
4 sides.

5 Young people in Pennsylvania want the
6 redistricting process to be an opportunity for our General
7 Assembly to set a real precedent for the rest of the United
8 States.

9 I have taught our young people to be mindful of
10 institutional power and how it plays out. I have asked
11 them to examine the legal system with a justice equity
12 lens, I have asked them to examine our social structures
13 with a cultural equity lens, and I have asked them to
14 examine through research our policy and political
15 structures with a power equity lens. What lens will you
16 put on during the next redistricting process?

17 Together, our Student Ambassadors program will be
18 watching. We believe that the fairness that becomes sifted
19 out will reflect the attitudes of our legislative leaders.
20 We believe that in the final rhetoric, we will reflect the
21 foundation of trust we hold in the future. We believe that
22 the accuracy of the statistics that will determine the
23 voting lines will reflect how much the vote will be
24 willfully suppressed. We believe that the policies that
25 get shaped after the next redistricting process will

1 reflect the mindset of our leaders. So we will be
2 watching, and our vote will resonate.

3 I will end where I began, but this time, I pose
4 these questions:

5 Will the next redistricting process of our
6 Federal and State legislative map be an exercise of real
7 democracy in action?

8 Will we as adults demonstrate to our young people
9 for once that we will set aside the wrangling of politics
10 and we will demonstrate that their voices are heard?

11 Will we as adults ensure that all of our voices
12 are heard?

13 Our young people in Pennsylvania are looking for
14 a cascade of justice. The time is now to finally make that
15 happen. Thank you for allowing me the opportunity to share
16 my voice in this process.

17 And I know I have 10 minutes. I just want to say
18 that -- oh, I'm not supposed to deviate, but it's important
19 to really be an example for these young people. I deal
20 with young people all the time. I am a millennial. They
21 need us. They need adults. And I just, you know, just
22 think about this moment and how impacting it is for them.
23 That's what's most important here. Because we are older,
24 and when I think about shaping the future, they need a
25 foundation. They need to see that their interests are

1 being thought of in the future.

2 Thank you so much.

3 MAJORITY CHAIRMAN GROVE: Thank you so much. We
4 greatly appreciate your willingness to come out and testify
5 this morning.

6 Our next testifier is Charles Black, the
7 Pennsylvania Coordinator for the Fair Elections Center
8 Campus Vote Project, Philadelphia, Pennsylvania.

9 Charles, thank you so much for coming, and as
10 long as that bright green light is on -- it is not. Just
11 hit the push-button. Now you're good to go.

12 MR. BLACK: Am I good? All right.

13 MAJORITY CHAIRMAN GROVE: The floor is yours.

14 MR. BLACK: Thank you.

15 My name is Charles, and I am the current Midwest
16 Regional Manager and former Pennsylvania State Coordinator
17 for the Fair Elections Center Campus Vote Project. My
18 colleagues spoke with you last week.

19 I am also currently a student at Temple. I am a
20 lifelong Pennsylvania voter. I used to live in central
21 Pennsylvania, and I am now here in this wonderful city.
22 The Campus Vote Project is a national nonpartisan group
23 that works with students from across the country to help
24 them register to vote, cast their ballots, and be civic
25 engaged.

1 In Pennsylvania, we currently work with
2 32 campuses, including all types. I am here today to
3 encourage this committee to include colleges as a community
4 as you are drawing these next maps. Our existing maps
5 should not be used as a starting place, and instead, we
6 need to start from scratch.

7 These new maps that you are going to draw must
8 reflect the changing demographics of our Commonwealth.
9 According to the National Study of Learning, Voting, and
10 Engagement, the voting rate of college students in our
11 State went from 15.9 percent in 2014 to 37 percent in the
12 last midterms. We know that's going to go up in 2022.

13 College students are a key voting demographic,
14 and their campuses should not be cut off. And I also want
15 to applaud that you have done two of these on college
16 campuses. I think that's great. And if you do future
17 sessions, please try to have them at colleges.

18 I do think it is also important to note that an
19 event at 10 a.m. is not something that young people can
20 typically go to, so I am here on behalf of the many college
21 students that are a part of the Campus Vote Project.

22 Looking at the current maps, one of my main
23 concerns is right here in Philly with Temple. Temple has
24 roughly 44 percent of BIPOC students. Temple is currently
25 in both District 2, represented by Congressman Boyle, and

1 District 3, represented by Representative Dwight Evans.
2 The map for the 2nd and 3rd Districts literally runs right
3 through campus down Broad, and the western part of the
4 campus is placed in the 3rd. As you can imagine, that can
5 be very confusing in that it dilutes fair representation.
6 New maps should address this by ensuring that colleges and
7 universities, especially where students are, are not split
8 up. This is a bigger issue with a lot of our State-level
9 maps, but the biggest one with our Federal is with Temple.

10 This process that your committee is going through
11 should not be a partisan issue. These new maps that you
12 create must be drawn to keep all Pennsylvanians in mind,
13 guided by a commitment to racial equity and full
14 representation for all.

15 I don't think it's fair as a Temple student, if I
16 lived on campus, I could have Representative Boyle if I was
17 a freshman, and then if I moved across campus, I could have
18 a different Rep. And I'm sure they're both great people,
19 but Temple should still be together. College-age voters,
20 particularly students of color, don't feel like they are
21 included in this process, and they deserve the opportunity
22 to elect representatives that will be responsive to them.

23 Your committee is charged with an incredibly
24 important task. I wish you all the best. And college
25 students from around the Commonwealth, especially the

1 college students in your communities, are watching you. We
2 are in the process of submitting community maps, and I'm
3 sure you will see Temple as one that should not be split
4 up, and I know there are examples across our Commonwealth.

5 So to conclude, I ask that you draw maps that
6 respect the needs of Pennsylvania college-age voters and
7 all voters.

8 Thank you, Mr. Chairman, for your time.

9 MAJORITY CHAIRMAN GROVE: Thank you, Charles. I
10 really appreciate your willingness to testify. You did a
11 great job.

12 Our next testifier is Mona Cohen, Philadelphia,
13 Pennsylvania.

14 Good morning, and as long as that little green
15 light is on and you're comfortable and ready, the floor is
16 yours.

17 MS. COHEN: Thank you.

18 Good morning, Representatives. Thank you for
19 coming to my little corner of the world here.

20 I'm a Northeast Philadelphia gal and I always
21 have been, and there's a certain distinction to that. It's
22 nebulous, it's hard to put your finger on it, but you know
23 it when you see it or hear it. You know it when you live
24 it and you recognize it in others, maybe by a certain
25 intonation, maybe by a shared reference. There are many

1 Facebook groups dedicated to this phenomena with names like
2 "Growing Up Jewish in Northeast Philadelphia" or "Memories
3 of Northeast Philadelphia." These are groups held together
4 through a shared experience and a recognition that
5 Northeast Philadelphia is a special place with a strong
6 sense of community. It is that sense of community that
7 brings me here today.

8 Depending on how you define it, Northeast
9 Philadelphia is a fabric of communities that contains
10 almost 400,000 people. If it were its own city, it would
11 be the second largest in Pennsylvania, ahead of Pittsburgh
12 and behind only the rest of Philadelphia. Yet, despite
13 this size, we maintain the feeling of a small town with
14 neighborhoods connected by shared history, economic
15 concerns, and a community pride that is impossible to
16 quantify.

17 Yet, as our State Government proceeds with the
18 congressional redistricting process in the coming weeks and
19 months, I'm sorry to say that we have seen maps published
20 in the media that would break up Northeast Philadelphia,
21 cutting our community in half, with half of us being moved
22 into an overwhelming Bucks County-based district and the
23 rest of us being looped into a district heavily weighted
24 toward Center City Philadelphia and areas outside the
25 Northeast. We do not want to see that happen.

1 Northeast Philadelphia has always been based in
2 one congressional district, precisely because we are one
3 community with a shared history, economy, and a sense of
4 ourselves. Such a large group of people with common
5 interests deserves to have one voice in the Federal
6 Government. If any map breaking up Northeast Philadelphia
7 were approved, everyone in the Northeast from community
8 groups to businesses to average citizens would see their
9 representation in Washington diluted and would be worse off
10 for it.

11 I have been heavily involved in community
12 advocacy for many years, fighting against harmful
13 construction projects and developments that would hurt
14 Northeast Philadelphia. One of the benefits of our current
15 map is that we have a small list of Northeast
16 Philadelphia-based local, State, and Federal officials who
17 we can advocate to. If Northeast Philadelphia is broken up
18 at the congressional level, will elected officials who live
19 in Bucks County or Center City have the same interest in
20 Northeast Philadelphia's challenges? I don't think so.

21 We are a large, cohesive community, and we want
22 one Member of Congress that we can advocate to who
23 understands our shared concerns, from Mayfair to Parkwood,
24 Somerton to Burholme. We are our own entity with our own
25 memories, our own flavors, our own shared experiences, and

1 we do not want to see any redistricting plans enacted that
2 would divide us. We deserve better than that, and we
3 deserve fair representation in Washington.

4 Thank you.

5 MAJORITY CHAIRMAN GROVE: Thank you, Mona. We
6 really appreciate your willingness to come out and testify
7 this morning. Thank you so much.

8 Our next testifier is Donald Wittenberg from
9 Philadelphia, Pennsylvania.

10 Donald, please come on up, and when you're
11 comfortable and ready, the floor is yours.

12 MR. WITTENBERG: Thank you, Mr. Chairman.

13 My name is Donald Wittenberg. I have lived in
14 Northeast Philadelphia since 1973. I have lived here
15 consistently without interruption. During these years, I
16 have seen the population decrease in Philadelphia as well
17 as have seen the number of congressional districts
18 decrease.

19 When I moved to Philadelphia in 1962, there were
20 four congressional districts all within the city
21 boundaries. It looks like the proposed changes will have
22 Philadelphia with less than two districts. Part of the
23 2nd District will be moved into Bucks County.

24 There are times when our representatives may have
25 opposing community pressures. Bucks County may have needs

1 which differ from Northeast Philadelphia. Our
2 representative may be torn as to which part of the district
3 to lend the balance of his or her voice.

4 During my adult life, I have held one occupation,
5 that of an educator in the Philadelphia School District. I
6 was a teacher for 13 years, then an elementary school
7 principal for 18 years, and finally, a central office
8 administrator for 13 years. Nine of my years was as a
9 principal. I served in the lower section of Northeast
10 Philadelphia.

11 While serving as a principal there, I also
12 participated in community events such as the Lawncrest
13 Fourth of July parade, I maintained the school to be open
14 for community sports, and of course I had annual activities
15 enjoyed by members of the community such as winter and
16 spring holiday shows, the 75th anniversary celebration of
17 our school from 1916 to 1991, Halloween parades in the
18 schoolyard, et cetera.

19 Before 1854, Philadelphia City consisted of a
20 small area between the two rivers from Vine Street to South
21 Street. All areas outside of this boundary were townships
22 such as Germantown, Kensington, Oxford, Byberry, et cetera.
23 By having Philadelphia City and Philadelphia County with
24 one boundary, then the Commonwealth of Pennsylvania created
25 a unified governmental structure in southeast Pennsylvania.

1 I believe that one of the goals of redistricting
2 is to keep the districts compressed into districts that are
3 as cohesive as possible. A flow with the current plan of
4 having the 2nd District flowing outside the city boundaries
5 can easily be corrected by increasing the Northeast
6 Philadelphia area so that less of Bucks County takes up
7 part of Northeast Philadelphia.

8 I don't know the population data, but it is
9 possible that the 2nd District contains all of the portions
10 which are being considered for Bucks County and the
11 Philadelphia boundary can be made whole. The chipping away
12 of the Philadelphia congressional boundary would have a
13 deteriorating effect on Philadelphia to improve its
14 destiny.

15 And parenthetically, I have to tell you I am very
16 saddened to see that in this plan, two excellent
17 representatives, one Democrat and one Republican, are going
18 to be forced to have a gladiator combat against each other,
19 and both Bucks County and Philadelphia will lose regardless
20 of who wins.

21 MAJORITY CHAIRMAN GROVE: Thank you for your
22 testimony.

23 And just to let you know, we actually don't have
24 maps yet, so. I don't know which map. There's a lot of
25 maps out there. We haven't started working on that yet,

1 but we'll definitely take note of that. Thank you.

2 Our next testifier is Howard Wiener -- Wiener;
3 okay -- from Philadelphia, Pennsylvania. And when you are
4 comfortable and ready, the floor is yours.

5 MR. WIENER: Thank you.

6 My name is Howard Wiener, and I live in
7 Philadelphia. I have lived here for over 40 years, despite
8 my New York accent, and I'm well versed in issues affecting
9 Philadelphia, both at the local and national levels.

10 I retired 4 years ago as an Assistant U.S.
11 Attorney for the District of New Jersey, having spent over
12 30 years in that position, but I speak to you as a private
13 citizen.

14 I oppose partisan gerrymandering regardless of
15 whether it is done by Democrats or Republicans.

16 At the outset, I will note that Philadelphia has
17 enough population to form about two congressional
18 districts. The reason is that its population is about
19 1 ½ million people, and each congressional district is
20 supposed to have about 765,000 people. So there's no
21 reason to have anything but two districts. Of course, the
22 boundaries are up to you and the courts.

23 I ask that you keep Philadelphia's representation
24 in Congress as undivided as possible -- that is, resting
25 with two Congresspersons -- so that its citizens are well

1 represented in Congress. This will enable Philadelphians
2 to more easily know their Member of Congress.

3 Among other things, it also will enable their
4 Member of Congress to work as a partner with municipal
5 government in securing funds to solve urban problems. Such
6 problems include violence prevention, job creation,
7 tourism, rail and transit, parks, libraries, bridges,
8 after-school programs, the police and law enforcement,
9 post-conviction job-training programs, job training in
10 skilled labor and trades, investment in education, just to
11 name a few needs.

12 Since I am a lawyer, I will focus on the legal
13 aspects of the State Legislature's job.

14 First, I believe the polestar for the
15 Legislators' job is the Pennsylvania Supreme Court's 2018
16 decision in the *League of Women Voters* case. As you know,
17 that case dealt with congressional redistricting.

18 The ruling is based on a Pennsylvania
19 constitutional provision -- the Free and Equal Elections
20 Clause. In particular, the courts said on page 118 of the
21 case that the clause, quote, "should be given the broadest
22 interpretation, one which governs all aspects of the
23 electoral process...." Essentially, the court forbid the
24 Legislature from acting in a clearly partisan manner in
25 creating a congressional map. That ruling adopted

1 objective neutral criteria. It stated that the
2 Constitution requires districts to be compact and
3 contiguous with minimal division of political subdivisions
4 unless necessary to ensure equal population.

5 The exact formulation of the court's criteria is
6 set forth on page 123 of its opinion and its accompanying
7 order. It is clear and concise. The court's order
8 included the following language, from which I quote in
9 relevant part: "Any remedial congressional districting
10 plan, whether enacted by the General Assembly [or]
11 Governor..., should consist of: congressional districts
12 composed of compact and contiguous territory; as nearly
13 equal in population as practicable; and which do not divide
14 any county, city, incorporated town, borough, township or
15 ward except where necessary to ensure quality of
16 population." I urge the Legislature to use and apply this
17 standard in this redistricting cycle.

18 Significantly, the court said on page 123 that
19 any other factors are wholly subordinate to these neutral
20 criteria. In particular, that includes "communities of
21 interest." I'm not saying you should ignore communities of
22 interest, but the key criteria are the most important and
23 need to be given priority over any other factors.

24 If these primary neutral criteria are utilized,
25 then there cannot possibly be partisan intent in the

1 creation of the map, and the map that results likely will
2 not result in a partisan effect.

3 The best way to eliminate the possibility of
4 partisan intent is to explicitly adopt and then apply these
5 neutral criteria. The map the Supreme Court approved in
6 2018 followed and implemented those neutral,
7 constitutionally mandated criteria. The Legislature should
8 carefully study that map so it can see what type of map the
9 Supreme Court is likely to approve.

10 In addition, such objective neutral criteria
11 also provide a judicially manageable standard. It is
12 self-evident that the map the Legislature devices can and
13 likely will be contested in the Pennsylvania Supreme Court.
14 Why? Because somebody will not like this map. It's
15 impossible to create a map that will satisfy everybody. We
16 all know this, okay? We all know there are many ways to
17 draw maps. There's no perfect map, and no matter how you
18 draw it, somebody will not be happy, okay? So we're going
19 to the Pennsylvania Supreme Court.

20 The court made it clear that it will intervene in
21 the redistricting process whenever that process goes off
22 the rails. The court noted on pages 132 to 135, the court
23 talks about its power to step into the process when the
24 Legislature cannot or will not act. It is in the interests
25 of the Legislature and the public for the Legislature's map

1 to pass judicial scrutiny. The best way to avoid an
2 adverse judicial ruling is for the Legislature to both, A,
3 explicitly adopt the Supreme Court's criteria into its
4 report that it eventually publishes along with the
5 congressional map; and B, explicitly apply those criteria.
6 That way, the court will be able to clearly see what the
7 Legislature has done. There won't be any question about
8 the process that was adopted and followed.

9 The Legislature's process will be transparent in
10 that fashion. The court will want to know the basis for
11 the Legislature's map. That is both the criteria and
12 methodology utilized and whether and how it applied that
13 methodology. If these steps are taken, then it will be
14 much easier for you, the Members of the Legislature, to
15 defend your map before the court, and the court will more
16 likely approve your map if it views that map as based on
17 clear, judicially manageable standards that were
18 implemented in a nonpartisan fashion.

19 And I want to emphasize, this applies equally to
20 Republicans and Democrats. The lawyers among you know that
21 if the Republicans like the map that is drawn, it is in
22 their interests that the map be judicially approved, but if
23 they do not like it, then it is in their interests that
24 they be able to successfully contest that map. They can do
25 so by arguing that neutral objective criteria either were

1 not adopted in the map-drawing process or that they may
2 have been adopted but they were not followed, and the exact
3 same thing goes for Democrats.

4 The bottom line is, I respectfully ask you to ask
5 yourselves the following: What is the point in devoting
6 hours of effort to creating a map only to have the
7 Pennsylvania Supreme Court throw it out?

8 Thank you for your attention and for giving me
9 the opportunity to speak.

10 MAJORITY CHAIRMAN GROVE: Thank you, Howard. We
11 greatly appreciate your willingness to testify today.

12 Stephen Kurens, unfortunately, will not be
13 testifying today. He is sick. So our next testifier is
14 Juan Giarizzo, Philadelphia, Pennsylvania. I will not
15 attempt to---

16 MR. GIARIZZO: That's a good call.

17 MAJORITY CHAIRMAN GROVE: Yeah. I will butcher
18 it, so I will let you do it professionally.

19 MR. GIARIZZO: Thank you, sir.

20 MAJORITY CHAIRMAN GROVE: So, Juan, the floor is
21 yours, sir.

22 MR. GIARIZZO: Thank you.

23 Good morning, Chairman Grove and Democratic
24 Chairman Conklin and the rest of the Members of the
25 Committee.

1 I want to thank you for the opportunity to
2 present my testimony before the Committee. I am a
3 Venezuelan American immigrant and an active community
4 leader in the Venezuelan and Hispanic community in the city
5 of Philadelphia.

6 I act as Executive Director of Gente de
7 Venezuela, a nonprofit organization focused on the support
8 of Venezuelan immigrants in the area of Philadelphia and
9 the United States. We provide support to immigrants in the
10 shape of advocacy, donations, and assisted releases to
11 immigration detainees, promoting vaccination, and at the
12 same time, we promote our culture.

13 Additionally, I am also a founding member of
14 Alianza Latina of Philadelphia, which is a group of
15 Hispanic community leaders that decided to organize
16 themselves in order to increase the political participation
17 of the members of our communities and promote strategic
18 alliances between our groups.

19 Today I'm here because I'm fully aware that we
20 are approaching the moment to outline the congressional
21 district maps that will determine the opportunity of my
22 community and other communities to access political
23 representation in key political spaces. Political
24 representation is fundamental to access resources, and
25 cracking or packing districts will negatively impact my

1 community and others as well that are historically
2 politically underrepresented, which leads to the lack of
3 trust in the political and legislative process.

4 Based on the census data, we see a growth in the
5 Hispanic community in Philadelphia and Pennsylvania; for
6 example, North Philadelphia. The same census data shows
7 that other areas in the Commonwealth have also lost
8 population; for example, the 15th District, which is
9 central-west Pennsylvania. These reductions and gains of
10 population should be reflected in the new maps.

11 We are now over a million Hispanic people in the
12 Commonwealth. We should have a fair map that will allow us
13 to maintain our current representation and avoid the
14 fracture of districts with a common-interest population.

15 I would like to ask this committee to guarantee
16 that the new maps follow the criteria established in the
17 2018 Supreme Court verdict that was so well exposed by the
18 previous testifier and do not divide those districts that
19 have experienced a population growth; for example, the 3rd
20 and 2nd Districts. Even if I reside in the 3rd District,
21 the majority of the population I serve resides in the
22 2nd District, and they do deserve to maintain their
23 representation. I have witnessed the growth of this
24 Hispanic population in that particular area, and I want to
25 ask this committee that that growth is reflected in the new

1 maps.

2 Thank you so much.

3 MAJORITY CHAIRMAN GROVE: Thank you, Juan. We
4 greatly appreciate your testimony today. Thank you so
5 much.

6 Our next testifier is David Kushner,
7 Philadelphia, Pennsylvania. David?

8 All right. If he arrives, we'll come back.

9 Daniel McElhatton, Esq., Philadelphia,
10 Pennsylvania.

11 Dan, thank you so much for coming. And the light
12 is on, so when you are comfortable and ready, the floor is
13 yours.

14 MR. McELHATTON: Good morning, Chairman Grove;
15 Chairman Conklin; our host, Representative White; and
16 Members of the Committee. Thank you very much for taking
17 the time to come here to Northeast Philadelphia for this
18 testimony.

19 I appear today as a private citizen, although I
20 have served as a member of the Greater Northeast
21 Philadelphia Chamber of Commerce for many years and as its
22 Chair. Our President submitted written testimony, so I'll
23 refer to her testimony. I also would incorporate mine, and
24 it has been incorporated.

25 I have a little bit different perspective than I

1 think some others who have testified. I am not going to
2 repeat some of the great points that were made.

3 About 30 years ago to the day, I was elected to
4 represent the 7th Council District in Philadelphia.
5 That's a district of about 175,000 folks. It went from
6 Norris Square up to Rhawnhurst. The second issue that we
7 had to deal with in 1992 when Ed Rendell came in and seven
8 new council members came in, including our now Mayor,
9 Jim Kenney, former Mayor Mike Nutter, was redistricting.
10 The 1990 census had been finished, and we had to redraw
11 the boundaries. It was a hellacious process. I don't
12 envy you. At the third meeting of our council, we had
13 300 people in the gallery screaming and yelling at us for
14 300 different plans that they had for our redistricting.

15 Ironically, when I saw the witness list, the
16 first witness to testify, Will Gonzalez, who didn't appear
17 yet, Will was leading one of the groups in terms of, you
18 know, lambasting us for not having a district that included
19 most of the Latino community.

20 For months, we went through a rigorous process of
21 trying not to redraw someone else's district but our own,
22 you know, 10 district council people and 7 at-large. We
23 finally did it, and the hammer that is used by our city
24 charter is that if you do not come up with a redistricting
25 plan within a certain period of time, you don't get paid,

1 and that motivation had us come up with a plan.

2 Was it perfect? No. Was it practical? Yes. It
3 changed my district considerably, because it narrowed it
4 and it took it up further into the northeast and further
5 south. It then started at Girard Avenue at the south and
6 came all the way up to Grant Avenue in the northeast. And
7 if you know the city, that's really, really diverse. It's
8 a very challenging district. And so as you look at what
9 your responsibilities are, the contiguousness of the
10 districts, the compactness, that has practical
11 implications.

12 After we redrew the district, for 2 ½, almost
13 3 years, what district did I represent? Did I represent
14 the new 7th District which had thousands of people that had
15 not even had me on the ballot, or did I represent the old
16 one who could never vote for me again? And it wasn't just
17 my interests, it was the political interests of what was
18 happening in the city and in the communities. What did our
19 staff have to do?

20 The principal who spoke earlier, that school, I'm
21 sure, since it was in Lawndale, was in my original
22 district. It was not in the new district. So as an
23 elected official, where should my efforts be, to try to
24 assist the people in Lawndale or to assist the people in
25 Rhawnhurst? It's really a very practical thing.

1 So when I hear the summary by Mr. Wiener of the
2 Supreme Court of Pennsylvania's decision in terms of the
3 practicality of it and the need to keep the districts
4 compact, it really does have an impact on the elected
5 officials, on their staff, and on their community.

6 Philadelphia has an appointed school board.
7 Other districts in Bucks County and others, in Montgomery
8 County, they're elected -- a significant difference.

9 Services. The city of Philadelphia does
10 municipal collection of trash and recycling. Outside the
11 city, it's privatized. In the city, you have strict zoning
12 codes and you have a process for changing in development.
13 When a representative becomes aware of that, or when a
14 community group becomes engaged in that process, they knew
15 and know now who they can go to for assistance.

16 In the northeast right now, there's some
17 controversy over a UPS facility and whether it should be
18 located in a particular spot, not too far from here, and if
19 that community group wants to engage their United States
20 Representative, they know who to go to. If the district is
21 divided and a significant portion of the northeast is moved
22 into Bucks County, that Representative, that U.S.
23 Representative, may have an interest in assisting that
24 community but doesn't have the same clout, doesn't have the
25 same power in terms of its impact on the city of

1 Philadelphia and on the zoning board and possibly on the
2 elected officials and the administration.

3 I think that the testimony of others like
4 Mr. Floyd and Mr. Wittenberg, Mr. Wiener, and all of the
5 folks who have testified, have given you some very
6 significant points. I admire your desire to listen and to
7 act, hopefully in consistency with the Pennsylvania Supreme
8 Court. Good luck.

9 Thank you.

10 MAJORITY CHAIRMAN GROVE: Thank you so much, but
11 also thank you for your service.

12 Our next testifier is Anne Hanna from
13 Philadelphia, Pennsylvania. And, Anne, when you are
14 comfortable and ready, the floor is yours.

15 MS. HANNA: Am I on the microphone? Is it
16 working okay?

17 MAJORITY CHAIRMAN GROVE: Yep.

18 MS. HANNA: All righty. Great.

19 My name is Anne Hanna. I am an
20 anti-gerrymandering activist, a scientist, a data analyst,
21 and a mapper. And I have spoken with, I don't think any of
22 you here in person but some of the ones on video before in
23 those capacities. But I come before you today as simply a
24 Pennsylvanian demanding the right to have my voice and the
25 voices of my neighbors fairly represented in Congress.

1 I live in the Olde Richmond neighborhood in lower
2 northeastern Philadelphia. Until 2018, my house was in the
3 highly gerrymandered 1st Congressional District, which was
4 precision engineered in 2011 to pack Democratic voters and
5 Black voters in and around Philadelphia into as few
6 districts as possible and to give an unshakably safe seat
7 to powerful incumbent Congressman Bob Brady in order to
8 secure his acquiescence to a redistricting plan that was
9 designed overall to disenfranchise his party and his
10 constituents. In short, the old 1st District was a
11 partisan, racial, and incumbent-protection gerrymander, and
12 a particularly egregious one.

13 Mr. Brady, my then "representative," lived on the
14 other side of the city from me, and his district included
15 such a disconnected scattering of disparate and fragmented
16 communities that he felt little need to represent
17 constituents' actual concerns. No challenger could
18 assemble a unified coalition to go up against him in either
19 the primary or the general election. And as a member of a
20 neutered and tamed minority party, he knew he would never
21 be expected to actually deliver on his constituents' policy
22 preferences. He could sit secure as a regional power
23 broker accomplishing little for his patchwork district and
24 never fear losing an election, right up until the moment he
25 got caught out in a corruption scandal.

1 The Pennsylvania Supreme Court's 2018
2 anti-gerrymandering decision changed all that. While no
3 district map can ever be perfect, the new 2nd District,
4 which now includes my neighborhood, encompasses a compact
5 and comprehensible section of the city, and my current
6 Congressman, while also not perfect, is considerably more
7 responsive and legislatively active than his predecessor.

8 Moreover, the improved fairness of our State's
9 congressional delegation as a whole means that for the
10 first time since I have lived in Pennsylvania, the policy
11 preferences of the residents of my district stand an actual
12 chance of being enacted into law, which means that I can go
13 to my Congressman and demand that he take action on issues
14 that I care about and expect him to actually deliver at
15 least some of what I and my neighbors need.

16 This is what "representation" means to me as a
17 Pennsylvania voter, not just that my own single
18 congressional representative be from a community with which
19 I am somewhat affiliated or be from my preferred political
20 party, not just that the rest of the district that helps
21 elect that person be a somewhat reasonable assemblage of
22 affiliated communities, although all of those things are
23 important, but most importantly that my community and
24 communities like mine actually have collectively the
25 real-world electoral power to see our equal share of policy

1 priorities enacted into law. That's what I want to see
2 come out of the redistricting in our region and across the
3 State.

4 And this is an achievable goal. The Pennsylvania
5 Supreme Court proved that to all of us in 2018. They
6 collated mapping suggestions from a variety of different
7 stakeholders, specifically the parties and the amici
8 participants in the lawsuit; prioritized the State
9 constitutional requirements for free and equal elections
10 and for adherence to traditional neutral redistricting
11 criteria of compactness, minimal political subdivision
12 splits, population equality, and contiguity; and in the
13 end, developed a redistricting plan that did not unfairly
14 disadvantage any incumbent representatives and did produce
15 a congressional delegation that reasonably matched the
16 overall preferences of the statewide electorate.

17 We the people have a right to see our Legislature
18 do the same in 2021, and the Pennsylvania Supreme Court's
19 2018 map should be a model, not just in its design
20 principles but in the specifics of its district shapes.

21 And now we have yet another model for a
22 participatory and open process in our State. Over the past
23 3 ½ years, Draw the Lines has won numerous citizen mapping
24 contests and collected a massive database of 1500 fully
25 completed congressional mapping proposals for Pennsylvania,

1 the work of more than 7200 Pennsylvania mappers from
2 almost every part of the State, including myself and
3 several of my fellows in the Concerned Citizens for
4 Democracy anti-gerrymandering group.

5 Draw the Lines staff and champion mappers in
6 DTL's Citizen Map Corps, again, including me, then
7 collaborated to produce a consensus map guided by that
8 database. The Pennsylvania Citizens' Map respects
9 Pennsylvania's constitutional requirements for
10 redistricting, the integrity of local communities as
11 identified by mappers from every region, partisan fairness
12 and fairness to incumbents, and it attempts to navigate
13 necessary compromises amongst these values equitably and in
14 good faith.

15 This map is quite possibly the most
16 democratically produced congressional mapping proposal in
17 the State's history, quite honestly, which, you know,
18 doesn't say a whole lot about how the legislative process
19 has gone in the past, and it deserves to be considered a
20 strong starting point for the official legislative process.

21 If you go to the Draw the Lines website -- and I
22 put these specific links in my testimony, in my written
23 testimony -- you can see the map, and I believe you were
24 also offered a copy of it yesterday, and we're going to see
25 all of you all in Harrisburg next week with copies for

1 everybody. So I would encourage you to have a look at the
2 map. But I'm starting to become concerned that the
3 Legislature does not feel the same sense of urgency as we
4 citizen mappers do about ensuring that our State engages in
5 and has time to complete a fully open and transparent
6 mapping process before the 2022 congressional primaries
7 begin.

8 I remember all too well what happened in 2011. A
9 highly gerrymandered map specification appeared suddenly
10 out of nowhere from the majority party's secret mapping
11 room and was made law practically overnight on a near
12 party-line vote, with no time for public comment, in an
13 embarrassing sham of democracy. It would be a disgrace to
14 have the process end the same way this year. The fact that
15 these hearings are happening at all is indeed a significant
16 improvement over 2011, but we need much more on several
17 fronts.

18 First of all, in regard to these hearings
19 themselves, I have a real fear that this committee has, I
20 would like to believe inadvertently, hamstrung its own
21 ability to hear from large groups and important
22 stakeholders in this process. This hearing, like the
23 hearing in Pittsburgh, is set way out in, frankly, the
24 suburbs, even though they are technically in Philadelphia
25 -- and, I mean, you have just heard several speakers talk

1 about how the Northeast has a distinct identity from the
2 rest of Philadelphia -- far from most of the Black and
3 Latino communities who make up more than half of the
4 population in Philly, in the middle of a workday,
5 inconvenient to public transit, with no remote testimony
6 option to accommodate those with travel difficulties or
7 health concerns about the coronavirus.

8 And by the way, you just heard that
9 Stephen Kurens isn't here because of health concerns?
10 That's why, because he cannot be here with people he
11 doesn't know their vaccination status, not wearing masks,
12 and he could have testified remotely if he had that option.

13 To put it bluntly, most Philadelphians couldn't
14 be here today to have their voices heard even if they
15 wanted to, and, of course, most don't even know that this
16 is happening and don't know how their exclusion might
17 affect them. It doesn't have to be this way. The 2019
18 Pennsylvania Redistricting Reform Commission held its
19 Philadelphia hearing right downtown on Broad Street and got
20 a very broad crowd, not just, you know, representatives and
21 organizations and local politicians and, you know, a few
22 White people with spare time on their hands, but actually a
23 much fuller spectrum of the Philadelphia population. And
24 the LRC offers Zoom hearings and has a similar good
25 turnout. This committee can and should learn from their

1 examples.

2 Second, judging by the hearing calendar, this
3 committee seems to have an expert hearing planned on
4 October 28th that only includes right-wing voices and voices
5 from rural voters, not to mention only White dudes. One
6 speaker is from the Cato Institute, one speaker is from the
7 Center for Rural Pennsylvania, and one speaker has
8 pro-gerrymandering views so extreme that even Donald Trump
9 was forced to back off in an attempt to nominate him to
10 lead the census.

11 Where are the nonpartisan scientists and
12 anti-gerrymandering experts? Where are the experts to
13 speak to the needs of urban Pennsylvania? Where are the
14 female minority experts? The expert hearing part of this
15 process definitely needs rebalancing if it is to have any
16 hope of providing a full picture of what is needed to
17 create fair and representative districts for all
18 Pennsylvanians.

19 Third, we the people need a commitment from you,
20 our Representatives, to not just put on a show of listening
21 to us and then differently pose a map you have already
22 settled on amongst yourselves long before we ever had a
23 chance to speak. We actually need you to seek our feedback
24 in good faith on your mapping proposals before you finalize
25 them and, you know, change them maybe even in response to

1 that feedback. That means we need hearings just like this
2 one, except more inclusive, after you propose maps or
3 publish them, and we need timely access before those
4 hearings to appropriate digital forms of the proposed maps
5 and all analytical data that went into their design so that
6 nonpartisan experts can analyze their fairness before the
7 maps are voted on and suggest improvements.

8 The necessary data includes block assignment
9 files listing which census blocks are assigned to which
10 districts, and all geographic shape files, demographic
11 data, voting data, incumbent Legislator addresses, or at
12 least precinct IDs if there's privacy issues, so all of
13 that data. This data release is especially important if
14 the data used by the Legislature is customized or modified
15 in any way from what the Census Bureau puts out.

16 The need for this data release is also urgent.
17 The data you use to design your own map needs to be made
18 publicly available as soon as possible to allow citizen
19 mappers and outside experts to refine their own proposals
20 for submission to you and to prepare the analytical tools
21 for evaluation of your proposal.

22 You are running out of time to make this all
23 happen, and the month-long delay of these hearings only
24 exacerbates the time crunch. But we the people know that
25 plenty of other States are working through open

1 redistricting processes in a timely fashion, and we are not
2 going to accept another egregious gerrymander hustled
3 through at midnight.

4 Thank you for your time.

5 MAJORITY CHAIRMAN GROVE: Thank you for your
6 testimony, Anne.

7 We're going to go back to David Kushner. I think
8 he has arrived.

9 David, thank you so much for your willingness to
10 testify this morning, and once you're comfortable and
11 ready, the floor is yours, sir.

12 MR. KUSHNER: Good morning, everybody.

13 First of all, I appreciate and value the
14 opportunity to testify and share my thoughts on this
15 important issue that has a true and lasting impact on our
16 community, our neighborhood, and our region.

17 I recognize that the issue of redistricting does
18 not come up frequently and is oftentimes politically
19 motivated and divided on partisan lines. However, that is
20 not the nature of my opposition or the basis of my
21 testimony.

22 My concerns and comments come exclusively out of
23 a concern for the future of this community, of the
24 congressional district that we are in at the moment, the
25 need for a unified voice, and how we the people of

1 Northeast Philadelphia can be best and most appropriately
2 represented within the scope of the representation that
3 results of the redistricting process.

4 As a longtime community activist, myself involved
5 over 25 years in civic and faith-based activities in the
6 region, I feel I have somewhat of a unique perspective on
7 the needs of our community and the mindset of the many
8 residents and diverse residents of our community.

9 As a lifelong resident of Philadelphia, as a
10 matter of fact, between my grandparents, my parents,
11 myself, and my children, we are four generations that have
12 grown up and owned houses and went to schools and resided
13 in the community.

14 I have been a chaplain for many years for
15 numerous law enforcement agencies. I am a founding and
16 still-active member of the Mayor's Commission on
17 Faith-Based and Interfaith Affairs, a PDAC member, a former
18 committee person, and others. I can attest firsthand that
19 the pride and cohesiveness of Northeast Philadelphia
20 residents across the spectrums of age, race, religion, and
21 socioeconomic classes throughout the Northeast is strong.

22 We all have a shared respect for the past, an
23 interest in the present, and a deep concern for the future.
24 We may have some differences, but as the saying goes,
25 there's far much more that unites us than divides us. The

1 deep concern for the current redistricting plan and the way
2 it would break up that unity here in Northeast Philadelphia
3 is one of the many issues that unites this community.

4 I have had a very positive working relationship
5 with the Members of Congress and their dedicated staffs
6 that have represented this area for quite some time, going
7 back to Congressman Borski, Congressman Hoeffel,
8 Congresswoman Schwartz, and now Congressman Boyle.

9 In addition to my community involvement, which I
10 touched on previously, professionally I oversee the Office
11 of Government Relations for a global nonprofit social
12 service agency focused on victims of sexual abuse and those
13 suffering from substance abuse, various forms of addiction,
14 and mental health crises. I can say firsthand, based upon
15 a great deal of communal and professional experiences, that
16 the plan that I have seen for this redistricting will
17 dramatically result in the underrepresentation of this
18 community in the halls of Congress, will dramatically lower
19 the levels of constituent service available to the
20 residents of this community, and will smother the voices of
21 the children, seniors, and various other unique populations
22 that make up the incredibly diverse constituency within the
23 confines of Northeast Philadelphia.

24 I stand in strong opposition to the current
25 redistricting plan that has been, I guess, leaked and

1 displayed but not finalized yet and urge all who have a say
2 on this matter to please stand and speak in unity with the
3 residents of this community by supporting a redistricting
4 plan that keeps this congressional district intact and
5 helps ensure that we as a diverse and unified community
6 have appropriate representation in Congress.

7 Thank you very much, and have a wonderful day.

8 MAJORITY CHAIRMAN GROVE: Thank you.

9 By the way---

10 MR. KUSHNER: Yes?

11 MAJORITY CHAIRMAN GROVE: If you have a copy of
12 that map you're talking about, I would like to see it.

13 MR. KUSHNER: No problem.

14 MAJORITY CHAIRMAN GROVE: Yeah. I actually don't
15 know what you're talking about with that map. And I know
16 we had somebody else testify about that, so.

17 MR. KUSHNER: Shoot me an email. I'll be glad to
18 share it with you.

19 MAJORITY CHAIRMAN GROVE: Absolutely. Thank you
20 so much.

21 MR. KUSHNER: No problem.

22 MAJORITY CHAIRMAN GROVE: We appreciate it.

23 Our next testifier is David Thornburgh. I'm
24 looking for David. He has not arrived yet. So we'll move
25 on to Roman Zhukov, Northeast Philadelphia Connected.

1 Roman, thank you. The green light is on, so when
2 you are comfortable and ready, the floor is yours, sir.

3 MR. ZHUKOV: Good morning, everyone.

4 So hello. My name is Roman Zhukov. I am
5 President of Northeast Philly Connected and a resident of
6 Far Northeast Philadelphia. In my area, I see very diverse
7 communities of more than 20 national and ethnic groups.
8 They represent most of or the entire Eurasia.

9 As an example, the Indian community is
10 15,000-plus registered members in just their association;
11 Arab, close to 17,000; Turkish and Azerbaijani communities,
12 close to 9,000 people; and post-Soviet that includes
13 Russian, Ukrainian, Belorussian, Uzbek, Georgian, Armenian,
14 Jewish, and many, many thousands more people.

15 This large immigrant population has settled
16 anywhere from Cottman in Northeast Philadelphia and goes up
17 to the Lower and Upper Southampton, Huntington Valley, and
18 surrounding boroughs. Most of the immigrants and their
19 families either own a business or are employed in a
20 different county from where they reside. So by the end of
21 the day, their interests are split between two
22 congressional representatives. This minimizes interests of
23 these diverse communities by not having a representative in
24 Washington who understands both their residential and
25 business needs.

1 Add on top cultural, language, and different
2 mindsets and you get thousands of people to be outcast from
3 today's society and any meaningful political impact.
4 Thousands of voices are being lost between those lines.
5 Having a single representation of all those groups will
6 create a stronger bond and easier assimilation to those who
7 can be unified. Shifting congressional lines beyond the
8 county lines, at least a few miles into Bucks, will give
9 all those immigrant groups that are seeking help and
10 answers and having a single hub to hear them all will
11 eliminate most of their issues they are facing in today's
12 reality.

13 COVID lockdown has proven when people are in
14 trouble, they are seeking help. Our organization worked
15 hard to find out ourselves who is responsible for each and
16 every square mile to help them all, and that was not an
17 easy task. Now imagine being a brand-new legal immigrant
18 without any language or knowledge to seek for help.
19 Reaching a government agency can become an almost
20 impossible task to do.

21 To conclude my statement, I strongly recommend
22 shifting those lines. Single representation can be a
23 solution to those who feel excluded. Singular
24 representation can give help or guidance on "how to" or
25 delegate appropriate resources for almost any concern to be

1 resolved. That will create a bond between newcomers and
2 elected politicians. It will give them faith that electing
3 a person will give them a solution to upcoming issues they
4 or we may face, a representation not just to a single soul
5 but their community. While it might not seem to be a
6 problem, it's a greater issue as we can think of.

7 Thank you, guys. Thank you for your time.

8 MAJORITY CHAIRMAN GROVE: Thank you so much for
9 your testimony this morning. We greatly appreciate it.

10 Our next testifier is Isiah Wilson, Philadelphia,
11 Pennsylvania.

12 Mr. Wilson, come on up. And Mr. Wilson's
13 testimony is an addendum, so that will be separate.

14 So the green light is on, and when you are
15 comfortable and ready, Mr. Wilson, the floor is yours, sir.

16 MR. WILSON: Okay. Hello?

17 MAJORITY CHAIRMAN GROVE: We can hear you.

18 MR. WILSON: Oh, okay. Great.

19 Okay. Good morning. Let me start, and I want to
20 give thanks to all of those involved making this event
21 possible and giving the opportunity to others to voice
22 their opinion on the proposal plan of redistricting
23 political zones.

24 My name is Isiah Wilson. I have lived in
25 Philadelphia in the Hispanic community for over 30 years,

1 and much has not changed during that time. In my
2 community, the lack of economic development, higher
3 education opportunities, and insecurities of all kind have
4 left our neighborhoods in a state of a demoralizing
5 mindset.

6 The redistricting of political zones is
7 conviction that it will do more harm than good if not done
8 in a practical and intelligent way. The new zoning could
9 reduce the opportunity of any Hispanic person of being a
10 representative voice of the Hispanic community in
11 government. So in view of the present realities and the
12 future challenges of the Hispanic community, I advise that
13 the redistricting plan be done with much clear
14 consideration of everyone involved that would be affected
15 by this rezoning.

16 And this is not in my papers, but as I look
17 around, and, you know, I am from Panama, and I see, I think
18 this is beautiful. You know, many countries wish they
19 could do this, and for you all to open up the opportunity
20 for the people to come and say what they feel, what they
21 think they like, they don't like, it's beautiful to me.
22 And I wish that whatever we do, it will be for the best
23 interests of our Pennsylvania and Philadelphia citizens
24 alike.

25 Have a nice day, and God bless America.

1 MAJORITY CHAIRMAN GROVE: Thank you, sir. We
2 greatly appreciate your testimony.

3 Our next testifier is Abi Thomas. Abi, thank you
4 so much for coming this morning. And the green light is
5 still on, so when you are comfortable and ready, the floor
6 is yours.

7 MS. THOMAS: All right. Can you guys hear me?
8 You're good? All right.

9 Hi, everyone. My name is Abi, and I live in
10 Northeast Philadelphia. I'm a direct product of what
11 Northeast Philadelphia represents, as my parents are Indian
12 immigrants and I'm a graduate of Central High School.

13 As a concerned voter, I'm here to speak about the
14 current redistricting efforts being made for us. I know
15 for a fact that I and many people who live in my
16 neighborhood, Northeast Philly, and the Greater Philly area
17 ask for fairness out of all things.

18 When it comes to the matter of redistricting, we
19 ask for contiguity. We ask for the preservation of
20 counties and our communities. Although these asks don't
21 seem to be that much to ask for, just know that if they are
22 not delivered, voters are watching.

23 What we are asking for is not gerrymandering,
24 especially in a State like Pennsylvania where every
25 election is one that has to be hard won. We are aware of

1 gerrymandering and its current impact in the past years as
2 voters, and we speak out against it in particular because
3 we know this impacts our local politics or this impacts a
4 voter like me arguably the most. We want legislation,
5 bills, and so forth to be able to get passed that can
6 actually help my city and its voters, but this can only be
7 done if we are redistricted in the ways that I mentioned
8 previously. The quicker that this is done, fairly keeping
9 our communities together and supporting the people of the
10 Commonwealth, the quicker our elected representatives can
11 get back to work to helping us. Voters are tired of the
12 political games, and all we ask for are fair districts.

13 I speak before you as a younger voter. Know that
14 the younger generations of voters are watching and expect
15 you to deliver what we want and need. As Carmina Taylor so
16 eloquently described, what younger voters ask for is
17 exactly what she talked about. When I was in high school,
18 we were taught exactly what gerrymandering is. The younger
19 generation is fully aware of its impact in politics. But
20 be prepared to see more young people in the coming years at
21 hearings more like this.

22 As Anne Hanna mentioned, the timing for this
23 meeting has been extremely inconvenient. I skipped class
24 today and I took off of work to make it here to make sure
25 my voice is heard since this is a matter of great

1 importance, and I'm sure other speakers have given up their
2 own personal time to speak on this.

3 As I am now a college student in Philadelphia, I
4 have grown to learn that Northeast Philadelphia is
5 especially different from the rest of the city. To have
6 lived here my entire life, I know the demographics that we
7 have in this part of Philadelphia in particular are
8 extremely special, the exact ones that Roman Zhukov talked
9 about. It is really what makes this part of Philly
10 Philadelphia.

11 What we are asking for is the bare minimum, as we
12 shouldn't have to fight for fair districts to begin with.

13 Thank you for your time.

14 MAJORITY CHAIRMAN GROVE: Thank you, Abi. We
15 greatly appreciate your time this morning.

16 Our next testifier is Viktor Kagan. Viktor,
17 thank you so much for coming. The green light is still on,
18 so the floor is yours when you are ready.

19 MR. KAGAN: Good morning.

20 Thank you so much for having me. And I just want
21 to thank Representative White for actually sending out an
22 email inviting people to come to this. I didn't see much
23 about it, and I would love for more advertisement of
24 meetings like this. But I do want to emphasize that this
25 is also an inconvenient location for a lot of

1 Philadelphia, but we'll move on from there.

2 My name is Viktor. I am a resident of Northeast
3 Philadelphia my entire life. I am a proud son of
4 immigrants who sought out the American dream and a graduate
5 of Philadelphia public schools. I went to Central High
6 School and am a proud graduate there. Yet, throughout my
7 life, I have lived in gerrymandered seats designed as
8 Democratic voter sinks. I live in the 2nd District, have
9 lived in what was a previous district, and it has always
10 been a voter sink.

11 It's frustrating that the general elections were
12 predetermined for me as well as for every single
13 Pennsylvanian in almost every congressional district
14 throughout my life. Redistricting was created to ensure
15 that every Pennsylvanian of voting age can partake in an
16 election to elect and hold accountable Congress people.
17 For most of my life, that was never the case.

18 I'm here today because elected officials, you as
19 elected officials, have this duty to Pennsylvanians like
20 myself to quickly and fairly design our congressional
21 districts. What I'm saying is, they ought to be compact,
22 not spread across many counties as some of these maps that
23 my previous speakers have spoken about and are available
24 and I'm sure you all have seen, and they're not running
25 across highways splitting neighbors into different

1 districts, as Charles Black spoke earlier and other
2 speakers in other States have seen.

3 We are also looking to ensure that there is no
4 partisan bickering, because it embarrasses you. It ensures
5 that no fair districts are passed, and the inevitable is
6 that the Pennsylvania Supreme Court will draw fair
7 districts as it did in 2018.

8 I hope that this redistricting cycle entails an
9 open, fair, and productive redesigning of our congressional
10 map. The Commonwealth deserves more than we continue
11 hearing from the State Legislature. And to be honest, me
12 personally and I'm sure everyone else here is sick of
13 hearing all these ineffective partisan debates and all the
14 bills that do nothing to benefit the residents.

15 I'm going to repeat my asks:

16 I'm asking for a fair, compact map that keeps
17 similar communities together.

18 I ask for no voter sinks that ensure the success
19 of the other party in gerrymandered districts. The 2012 to
20 2018 maps ensured that millions of Pennsylvanians,
21 including my family members who fought to get here for the
22 American dream, were not in fair districts, were not
23 guaranteed the right to democracy, and were determined to
24 be represented by one particular party, which invalidated
25 democratic elections.

1 My district is a voter sink that combines so many
2 different communities that did not belong together, and I
3 also ask you to consider our welfare and struggles. The
4 more you bicker over petty differences, the less time you
5 will have to pass bills to help the Commonwealth.

6 Attempting gerrymandering in our State is
7 ridiculous. We can't be like our neighbors to the west in
8 Ohio, south in Maryland, or north in New York because we
9 know that it's going to look awkward, it's going to be
10 gerrymandered, and we're going to be sued by civil rights
11 groups. And here, if you gerrymander, the inevitable, as
12 we all know, is that the Supreme Court will again overturn
13 that map if you continue playing politics.

14 Take this process seriously, please, and actually
15 hear us out. I want a fair district that has similar
16 communities in it, as Roman pointed out earlier, that is
17 represented by a Congressperson who understands my needs
18 and fights for me, not someone who lives communities away
19 that doesn't understand what I'm asking for.

20 I want to know what district I will live in, so I
21 am asking for a quicker process rather than bickering and
22 playing around with our congressional districts, and I want
23 to know who is running to represent me in an election that
24 is only 7 months away. Don't play politics. Do your job.

25 Thank you so much.

1 MAJORITY CHAIRMAN GROVE: Thank you, Viktor. I
2 appreciate your time this morning.

3 And we'll go back to David Thornburgh, President
4 and CEO of the Committee of Seventy, Philadelphia,
5 Pennsylvania.

6 Perfect timing. The green light is on, so the
7 floor is yours, sir.

8 MR. THORNBURGH: Great. Thanks so much. And
9 thank you for your ongoing commitment to accountability and
10 transparency in this process.

11 I recall, I think it was June, when you gathered
12 at Representative Thomas's office. I think, Representative
13 Grove, you and the Majority Leader and others were there to
14 express your commitment to transparency and accountability.
15 I think you said you wanted to make this the most
16 transparent and accountable process ever. So I applaud you
17 for that and I commend you for that, but now is, as they
18 say, when the rubber meets the road, because we have about
19 90 days before, according to the Department of State, we'll
20 need to have a congressional map in place so that
21 candidates can know where they are running and voters can
22 know who they are voting for.

23 As you know, we don't have the option of reusing
24 congressional districts because we can't ask 18 people to
25 run for 17 seats. We have done that in the past with the

1 legislative seats, but that's not an option. So time is
2 short, and I guess my first message to you is, I implore
3 you and urge you as soon as you possibly can to share a map
4 with the citizens of the Commonwealth, because that, to me,
5 is true transparency and accountability.

6 These hearings are wonderful, and again, I
7 commend you for taking the time and the effort to do that,
8 but this only becomes meaningful when citizens can look at
9 a proposed map, give you their feedback, give you some
10 chance to adjust that, and we can move along in the
11 process.

12 I checked yesterday, and 22 States have already
13 proposed preliminary maps. Four States have already
14 finished their congressional process. So we are
15 increasingly behind the curve, and as I said, time is
16 short.

17 The second point I wanted to make is, to an
18 extraordinary degree, the citizens of Pennsylvania have
19 already showed you the way. I know I have shared with you
20 before the Draw the Lines PA project that we have been
21 involved in, which gave every citizen in the Commonwealth
22 the ability to draw his or her own congressional maps, and
23 7,211 people took us up on that offer from 40 of the 67
24 counties. It represented 90 percent of the State's
25 population. And in a series of biannual competitions

1 going back 3 ½ years, they, working in teams, completed
2 1500 congressional maps.

3 And we have used that collective insight, that
4 wisdom of crowds, if you will, to compile and release the
5 Citizens' Map of Pennsylvania, which we released on
6 September 8th. So it has been about 6 weeks since then.
7 And our intent then was to remind us all that people care
8 about this process. They are willing to invest, in this
9 case, thousands of hours of their own time, nights and
10 weekends, to show the way on what maps could look like.
11 And we have the benefit, because as you know, the
12 technology is so available and the data is so available
13 that we can do that now to an extent we have never done
14 before.

15 So that could be a starting point; it could be a
16 finishing point. But I urge you to take their work
17 seriously, because that's how, to me, this is supposed to
18 work, that the maps ought to be a product of a rich and
19 robust conversation between you and the folks that elect
20 you, and there's much to learn from that.

21 I guess the final point I would make, and I just
22 came in on the tail end of this other gentleman's
23 conversation. You know, there are a lot of cynics in this
24 business, and the cynics have said from day one, this is
25 all an elaborate ritual in theater. It really doesn't

1 matter. It's going to the court. That actually benefits
2 both Republicans and Democrats. And I choose not to
3 believe the critics and I hope you do, too. And I hope in
4 your actions in the next 90 days you demonstrate it and you
5 make the critics wrong and the cynics wrong, because let's
6 just say there are too many cynics in this process these
7 days, and cynicism doesn't build trust and respect for the
8 jobs that you do.

9 So with that, I again thank you for the chance to
10 share some thoughts with you, and I look forward to working
11 with you to bring this baby home.

12 MAJORITY CHAIRMAN GROVE: Thank you, David. We
13 greatly appreciate your testimony.

14 We are still waiting for our first testifier. I
15 understand they are on their way. So, Blinda, I got time.
16 Do you want to come up and testify?

17 MS. FLEMING-STEPHENS: Certainly.

18 MAJORITY CHAIRMAN GROVE: Yeah.

19 MS. FLEMING-STEPHENS: Really? Wow. I'm
20 impressed.

21 MAJORITY CHAIRMAN GROVE: Yep; no rush.

22 See what happens when you show up?

23 MS. FLEMING-STEPHENS: Oh, I'll tell you.

24 MAJORITY CHAIRMAN GROVE: Shock, right?

25 MS. FLEMING-STEPHENS: I am shocked.

1 MAJORITY CHAIRMAN GROVE: Yeah. It's all good.

2 So, hey, the light is on. When you're
3 comfortable and ready, the floor is yours, ma'am.

4 MS. FLEMING-STEPHENS: Well, thank you. This is
5 such a pleasant surprise, Chairman Grove, and we really
6 appreciate it. This goes to show you that you are
7 transparent, and I want to thank you again.

8 Thank you for the opportunity to speak before
9 this commission. I am a proud member of Delta Sigma Theta
10 Sorority, Incorporated, which was founded in 1913 on the
11 campus of Howard University, an HBCU. And I am a resident
12 of Philadelphia and Co-Chair of the Philadelphia Alumnae
13 Chapter's Social Action Committee.

14 About Delta. Delta Sigma Theta Sorority,
15 Incorporated, is a private, nonpartisan, not-for-profit
16 organization whose purpose is to provide assistance and
17 support through established programs in local communities
18 throughout the world. The sorority currently has over
19 350,000 college-educated members in 1,000 collegiate and
20 alumnae chapters located in the United States; Canada;
21 Japan, meaning Tokyo and Okinawa; Germany; the
22 Virgin Islands; Bermuda; the Bahamas; Jamaica; and the
23 Republic of Korea.

24 We have 4,000 Delta members throughout the
25 Commonwealth who are committed to protecting the right

1 to vote and ensuring that the Commonwealth uses maps
2 that fairly reflect the voters and the voices of
3 African American Pennsylvanians and other communities of
4 color.

5 In 1913, our 22 founders participated in the
6 Women's Suffrage March two months after establishing the
7 sorority, and our members have been at the forefront of
8 social and political struggles ever since.

9 Today I speak on behalf of my Pennsylvania Delta
10 sisters, and I have members with me. You know, we always
11 follow in a crowd. We're always in a crowd, that are also
12 with me to support me today, and they are from the
13 Philadelphia Alumnae Chapter of Delta Sigma Theta.

14 Today, we would like to share our concerns
15 regarding the following: gerrymandering and
16 disenfranchisement.

17 The Voting Rights Act of 1965 addresses the
18 history of discrimination in voting and the redistricting
19 process. The Voting Rights Act also ensures that State and
20 local governments do not pass laws or policies that deny
21 American citizens the right to vote based on race.

22 Section 2 of the Voting Rights Act protects
23 voters from discrimination based on race, color, or
24 membership in a language minority group in all election
25 procedures. Racial gerrymandering is a violation of the

1 Voting Rights Act, and any map that has the effect of
2 diluting the voting rights of communities of color must be
3 nullified.

4 Census results increase diversity, increase
5 opportunity, and according to the census data, the
6 Commonwealth's Black and Brown population has significantly
7 increased over the past decade. Currently, the communities
8 of color make up over 18 percent of Pennsylvania's total
9 population, and the census data shows that the Commonwealth
10 has become more diverse. There was a 9.8-percent increase
11 of total population of Black population. Hispanic or
12 Latino population also significantly increased during the
13 decade. This increase in diversity was distributed through
14 the Commonwealth, not just the urban centers of
15 Philadelphia and Pittsburgh, and also in the rural areas.
16 Twenty-six counties saw an increase of 10 to 49 percent in
17 Black population, and two counties, Lackawanna and Luzerne,
18 each saw an increase of over 50 percent of Black
19 population.

20 Delta is focused on the 2020 census results and
21 its effect on the Commonwealth's legislative district
22 boundaries that impact our communities of interest.
23 However, our representation in the State Legislature
24 currently lacks the diversity of our State, which could be
25 connected to how the districts are drawn for State House

1 and State Senate districts, and I do understand this is
2 congressional today.

3 In our diverse Commonwealth, it is critical that
4 Black and Brown communities, in accordance to the Voting
5 Rights Act, are protected in the map-drawing process. We
6 recognize in the past that redistricting has not done so in
7 such a manner, which prevented Black and Brown voters the
8 chance to elect their candidates of choice. This is known
9 as minority vote dilution.

10 We remind the commission that it must develop a
11 redistricting plan that complies with the standards set by
12 the United States Constitution, the Voting Rights Act, and
13 State law. These standards require that the commission
14 does not dilute the voices of Black and Brown voters and
15 does not deny Black and Brown voters an equal opportunity
16 to participate in the political process and to elect
17 representatives who will support the values of our
18 communities.

19 Maps cannot pack Black voters into too few
20 districts or crack Black communities or other communities
21 of color across multiple districts as schemes to dilute
22 Black and Brown voting power. The committee also cannot
23 proceed to pack or crack Black voters into and among
24 districts to serve partisan interests without running afoul
25 of the law.

1 In 2020, the NAACP, the Legal Defense Fund and
2 Educational Fund, filed a lawsuit challenging the practice
3 of prison-based gerrymandering in the Commonwealth of
4 Pennsylvania. For redistricting purposes, prison
5 gerrymandering is a practice of counting incarcerated
6 people as residents of the prisons where they are housed
7 instead of where they lived before imprisonment. The
8 prison population in Pennsylvania is disproportionately
9 made of Black and Latino people from large cities such as
10 Philadelphia, Pittsburgh, Allentown, and Harrisburg.

11 Pennsylvania has constructed its prisons
12 predominantly in rural areas where the majority of the
13 residents are White. By relying on incarcerated people's
14 bodies to achieve near equal population of people among
15 congressional districts inflates the political power of
16 rural, non-minority voters and dilutes the voting strength
17 and access to representation of communities of color in
18 urban districts.

19 The practice of prison gerrymandering also defies
20 logic. Most incarcerated people are not residents of the
21 district where they are incarcerated and have no social,
22 economic, civil ties, or communities just along the prison
23 walls. People in prison for felonies, the overwhelming
24 majority of incarcerated people, cannot vote. Elected
25 officials from districts that include prisons generally do

1 not engage with incarcerated people or consider them to be
2 constituents.

3 The Pennsylvania Constitution bars the
4 Commonwealth from lessening the power of an individual's
5 vote based on geographical location. In essence, the votes
6 of community members in an incarcerated individual's home
7 district are lessened with prison gerrymandering.

8 Disenfranchisement results explicitly by law or
9 implicitly through requirements applied in a discriminatory
10 fashion by placing unreasonable requirements on voters for
11 registration or voting. As we have seen time and time
12 again, the burdens of unreasonable requirements all too
13 frequently fall disproportionately on the Black and Brown
14 communities.

15 In our diverse Commonwealth, it is critical that
16 Black and Brown communities be protected by the map-drawing
17 process. And I know you haven't done it yet. The Voting
18 Rights Act applies to legislative apportionment and
19 prevents district lines that would deny Black and Brown
20 voters an equal opportunity to participate in the political
21 process and to elect representatives of their choice.

22 Redistricting is not just about who we are able
23 to elect but the opportunity to readily engage with that
24 elected official once in office. Delta encourages each of
25 its members and the communities that we serve to

1 communicate with their elected officials about public
2 policies that are of concern to them. Creating maps that
3 are not equal in population and that are not compact limits
4 the active engagement of our communities.

5 In closing, I come to this body to ask that there
6 be a fair, accessible, and transparent reapportionment
7 process where the following issues are addressed: the
8 elimination of gerrymandering that dilutes the voting
9 strength of Black and Brown voters; upholding the
10 Voting Rights Act according to fair representation; and
11 the development of a fresh approach which recognizes and
12 accounts for the importance of communities and minority
13 communities of interest.

14 We appreciate the Committee looking into the
15 steps to end prison gerrymandering, as that is another
16 cause of the imbalanced districts and vote dilution.

17 Today, we the members of Delta Sigma Theta stand
18 on the shoulders of our 22 founders, thanking the
19 State Government Committee for its process thus far, and we
20 look forward to endorsing any map that safeguards the
21 principles we have outlined in this testimony today.

22 Thank you, thank you, thank you for the
23 opportunity to speak before this committee today.

24 MAJORITY CHAIRMAN GROVE: Blinda, thank you so
25 much.

1 MS. FLEMING-STEPHENS: Thank you.

2 MAJORITY CHAIRMAN GROVE: I'm glad you were here,
3 because it was perfect, because our last testifier just
4 showed up, and that's when a plan comes together.

5 So, it's not Will, right? It's Marcos?

6 MR. LOMELI: It is Marcos; yes.

7 MAJORITY CHAIRMAN GROVE: All right. Come on up.
8 And the green light is on. The floor is yours. Thank you
9 for coming and testifying. Go for it.

10 MR. LOMELI: Sure.

11 Good morning, everybody. Thank you for allowing
12 us today to be here and testify on this important matter.
13 I am testifying on behalf of my colleague, Will Gonzalez,
14 who is the Executive Director of Ceiba.

15 My name is Marcos Lomeli. I am the Program
16 Director at Ceiba. Ceiba is a coalition of Latino
17 community-based organizations in Philadelphia whose mission
18 it is to promote economic development and financial
19 inclusion of Philadelphia's Latino community through
20 collaborations and advocacy aimed at ensuring their access
21 to quality housing.

22 Thank you once again for giving us the
23 opportunity to submit written testimony, and thank you for
24 accommodating a bit of an emergency we had this morning.

25 Redistricting is not an easy process, but it is

1 also not rocket science. Basic principles of demographics
2 and geography guide the redistricting process. Among these
3 is the important concept of "communities of interest";
4 i.e., groups of people who live in a specific location,
5 have collective interests, and share many things in common
6 -- customs, arts, social institutions, achievements, and
7 also challenges.

8 The prioritization of communities of interest in
9 redistricting in Pennsylvania is vital. We are heartened
10 that this is recognized by the Pennsylvania House
11 Republican Caucus, which offers those interested in
12 providing input on the Pennsylvania congressional
13 redistricting process the opportunity to draw the
14 boundaries of their community of interest using an online
15 mapping tool at paredistricting.com. Check it out.

16 We respectfully request that you follow the
17 website's guidance to focus on communities of interest. We
18 urge you to draw congressional districts, taking into
19 account the streets, neighborhoods, and important hubs that
20 make communities unique. Consider landmarks, cultural
21 districts, industries, employers, where kids go to school,
22 where families go to church, and the location of
23 neighborhood-based and social service organizations which
24 serve them.

25 Hispanics live in all parts of the city and the

1 Commonwealth, but most Latinos live in Eastern North
2 Philadelphia. The Latino community of Eastern North
3 Philadelphia epitomizes the definition of a "community of
4 interest." It is a self-defined group of people who share
5 bilingual and bicultural characteristics, have their own
6 culturally and linguistically appropriate nonprofit
7 organizations, churches, schools, businesses, business
8 corridors, and social institutions that share a common
9 interest and live in a compact urban footprint without any
10 geographic barriers.

11 The backbone of the Eastern North Philadelphia
12 Latino community is a robust network of nonprofit
13 organizations. A 2018 study by students from the
14 University of Pennsylvania's Master of City Planning found
15 that 15 Latino nonprofits leveraged \$86 million in
16 government grants to sustain 4,160 local jobs, generate
17 \$222 million in wages and salaries, build 1,333 new homes,
18 and rehab nearly 10,000 housing units.

19 While the full benefits of these investments are
20 incalculable, they are collectively worth at least
21 \$517 million per year. At that time, these 15 nonprofits
22 transformed the social and physical landscape for some
23 124,000 households and 1900 businesses in Philadelphia.
24 The work of these nonprofits continues to benefit the
25 community today.

1 The importance of the Latino community to the
2 Commonwealth and to the city of Philadelphia cannot be
3 overstated. But for the Latino community, Pennsylvania
4 would have lost more than one congressional seat.
5 Pennsylvania's population only grew about .7 percent
6 between 2010 and 2019, or just under 100,000 people. In
7 that same period, Pennsylvania's Hispanic population grew
8 about 35 percent, or by 256,000 people, plus some. Growth
9 in the Hispanic population far outpaced that of the whole
10 State and successfully offset the declines in population of
11 other ethno-racial groups in the Commonwealth.

12 In Philadelphia specifically, the total
13 population of the city grew by about 3 percent, or
14 58,000 people, between 2010 and 2019. During that same
15 period, the Hispanic population of Philadelphia grew by
16 about 28 percent, or 52,922 people. Philadelphia's
17 population growth as well as the Commonwealth's was fueled
18 by the growth of the Latino population.

19 Today, the Latino community of Eastern North
20 Philadelphia fits comfortably within Pennsylvania's
21 2nd Congressional District and makes up about 27 percent of
22 its constituency. We request that you keep this community
23 of interest intact. It is best for the economic
24 development of the Commonwealth of Pennsylvania to keep the
25 Latino community of eastern North Philadelphia in one

1 piece. And I apologize; I'm pulling up another little bit
2 of information as well on the Latino, the growing Latino
3 community of interest in South Philadelphia. Ah, where is
4 it? I apologize, folks.

5 Well, there's a growing Latino community of
6 interest in South Philadelphia as well, especially along
7 the famous 9th Street corridor, and that specific community
8 of interest, which again has its own culturally appropriate
9 business corridors, institutions, schools, and churches,
10 currently is split between two congressional districts,
11 Pennsylvania's 3rd and 5th. We ask that you look into ways
12 to keep this community of interest whole.

13 Ceiba looks forward to continuing this dialogue
14 about redistricting with the Pennsylvania Legislature. We
15 believe that we can work together with this Committee to
16 ensure that Pennsylvania's redistricting process actively
17 engages the public at every step of the process, such as
18 today, draws maps in a manner which accurately reflects
19 changes in the Commonwealth's population, avoids
20 gerrymandering, takes affirmative steps to ensure that the
21 reapportionment process does not run counter to the
22 protections offered by the U.S. Constitution, the
23 Pennsylvania Constitution, the Voting Rights Act, and the
24 principle of "one person-one vote."

25 Redistricting is a double-edged sword which cuts

1 depending on the hand that wields it. We have a great
2 opportunity here. Redistricting can keep communities whole
3 and ensure civic engagement or it can divide communities,
4 weakening their power. We ask that you let us be stewards
5 of change rather than victims of it.

6 Thank you very much.

7 MAJORITY CHAIRMAN GROVE: Thank you so much for
8 your testimony. We appreciate it.

9 That was our last testifier. Chairman Conklin,
10 any final remarks?

11 MINORITY CHAIRMAN CONKLIN: As always, I want to
12 thank everyone for coming out to these hearings. But I
13 think what is most important is that we listen. You are
14 the conscience of not only the representatives but of the
15 State itself. We need to listen to everything you have
16 said. We need to understand exactly how important this is.
17 But most of all, we need to understand that Philadelphia is
18 made up of sisterly love and compassion.

19 I want to thank every one of you for coming out,
20 and I have enjoyed every minute of it. Thank you.

21 AUDIENCE MEMBER: Can I ask you a question? We
22 have been hearing a lot about the diversity of the city,
23 but I have not seen diversity up here today.

24 MAJORITY CHAIRMAN GROVE: There is many Members,
25 and many of them are also virtual.

1 Thank you to our testifiers for your input on the
2 impact the redistricting process has on your communities.
3 I also want to thank the Members in attendance today, as
4 well as our hosts, the American Heritage Federal Credit
5 Union and Representative Martina White.

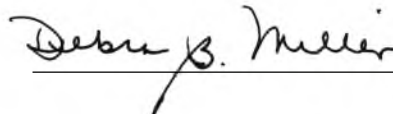
6 I hope it is evident that the House of
7 Representatives is committed to undertaking the most open,
8 transparent, and accountable redistricting process in
9 Pennsylvania history. We believe that transparency and
10 accountability form the bedrock of good governance, and
11 public input through these hearings plays an essential role
12 in that.

13 I thank everybody again for testifying. We
14 appreciate all the input we have received over these eight
15 regional field hearings, and we have one more congressional
16 redistricting hearing and then it's map time.

17 So thank you, everyone, and we are adjourned.

18
19 (AT 10:05 a.m., the public hearing adjourned.)

1 I hereby certify that the foregoing proceedings
2 are a true and accurate transcription produced from
3 audio/video on the said proceedings and that this is a
4 correct transcript of the same.

5
6
7 

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